

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Friday, July 10, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, July 10, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-01683	Gabriel Zamorano Lugo, et al. vs Auto Resources, Inc., et al.
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Application for Distribution of Interplead Funds

Cross-Defendant Apodaca's application for distribution of interplead funds is DENIED.

There are two major deficiencies with Cross-Defendant's answer. First, the general and specific denial of "each and every allegation contained in the complaint . . ." (Apodaca Answer, 3:4-5.) This undermines the foundation of Cross-Defendant's claim to the funds as it in effect denies the allegation that there are adverse and conflicting claims. (ACIC Complaint, No. 9, 3:7-9.)

Second, Cross-Defendant's answer to the complaint for interpleader does not meet the pleading requirements of Code of Civil Procedure section 386, subdivision (d). Code of Civil Procedure section 386, subdivision (d) states the answer "shall contain allegations of fact as to his ownership of or other interest in the amount or property . . ." (Code Civ. Proc. § 386, subd. (d).)

Here, Cross-Defendant's answer merely states in conclusory fashion at Number 5 that "The claims of Cross-Defendant have priority over all other Cross-Defendants." (Apodaca Answer, No. 5, 3:27.) A bare assertion of entitlement, without factual support, does not satisfy the requirements of section 386, subd. (d) and does not place the claim

at issue before the court. (See *Southern California Gas Co. v. Flannery* (2016) 5 Cal.App.5th 476.)

Cross-Defendant's application for distribution of interplead funds does not remedy the above deficiencies as it is equally deficient as to factual support.

25CV-02170

City of Fresno Employees Retirement System, et al. vs City of Fresno

Motion for Judgment on the Pleadings

The motion for judgment on the pleadings is **DENIED** as to the second cause of action, and **GRANTED WITH LEAVE TO AMEND** as to the third cause of action.

When reviewing a pleading, a demurrer or motion for judgment on the pleadings admits the truth of all material allegations and a court will "give the complaint a reasonable interpretation by reading it as a whole and all its parts in their context." (*People ex rel. Lungren v. Superior Court* (1996) 14 Cal.4th 294, 300.)

Cross-Complainant's second cause of action adequately pleads a breach of fiduciary duty. Although a breach of fiduciary duty may be a legal claim, it may also be equitable in nature. Breach of fiduciary duty claims in California carry a particularly robust set of available equitable remedies, including injunctive relief. In this instance, when the cross-complaint is read as a whole, the breach of fiduciary duty cause of action sounds in equity and is sufficient at the pleading stage.

As to the third cause of action for negligence, equitable relief is generally available only if legal remedies such as monetary compensation are inadequate. Here, the cross-complaint alleges Cross-Complainant was monetarily harmed as a result of Cross-Defendant's alleged actions. (FACC, ¶¶ 104-106, 14:18-25.) In this context, Cross-Complainant's third cause of action appears to seek monetary damages and does not adequately plead equitable relief so as to preclude the Government Claims Act and the immunities thereto from applying. Cross-Complainant has requested leave to amend, which is granted.

Any amended cross-complaint is to be filed within ten (10) days of this court's order.

Case Management Conference

CONTINUED ON THE COURT'S OWN MOTION to August 14, 2026, at 8:15 a.m. in Courtroom 8 in light of the above ruling.

Motion to Compel Further Responses to Requests for Production of Documents, Set One, Number 8, to Defendant Go Go Bake Corporation and Request for Monetary Sanctions Against Go Go Bake Corporation and Felipe Jeronimo Matias

Plaintiff's motion to compel further responses to Requests for Production of Documents, Set One, Number 8 is GRANTED. Defendant is to provide a further code-compliant verified response to Requests for Production of Documents, Set One, Number 8 within ten (10) days of this court's order.

The request for monetary sanctions is GRANTED. Monetary sanctions in the amount of \$1,000 are to be paid to Plaintiff within fifteen (15) days of this court's order.

In addition, Defendant is ordered to pay Plaintiff \$2,544 for court reporter and videographer fees incurred as a result of Defendant Matias' failure to appear at his duly noticed deposition on April 8, 2026. These costs are to be paid to Plaintiff within fifteen (15) days of this court's order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Motion for Attorney's Fees and Costs Pursuant to CCP 425.16 (Anti- SLAPP)

Defendant's motion for attorney's fees and costs is GRANTED.

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) "The amount of an attorney fee award under the anti-SLAPP statute is computed by the trial court in accordance with the familiar 'lodestar' method." (*Cabral v. Martins* (2009) 177 Cal.App.4th 471, 491 [citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135-1136.]) "Under that method, the court 'tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hours rate prevailing in the community of similar work." (*Ibid.*)

Counsel for Defendant seeks to set the lodestar at \$6,336 and requests an additional \$112.59 for costs. A trial court may not rubberstamp a request for attorney's fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) Here, the total of 12.8 hours billed for the motion are reasonable.

The court must then look at the hourly rate. The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Accordingly, following a careful review of the work required the court finds it reasonable to reduce the hourly rate from \$495 to \$350.

With the adjustment to the hourly rate, the lodestar is set at \$4,480.

Costs are awarded in the amount of \$112.59. Total attorney's fees and costs are awarded in the amount of \$4,592.59. The attorney's fees and costs are to be paid within thirty (30) days of this court's order.

26CV-01422

Christopher Bettencourt vs San Luis Delta Mendota Water Authority

Demurrer to the Complaint

Defendant's demurrer to Plaintiff's complaint is OVERRULED IN PART and SUSTAINED IN PART.

A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1404-05.)

For this reason, the court will not decide questions of fact on demurrer. (See *Berryman v. Merit Prop. Mgmt., Inc.* (2007) 152 Cal.App.4th 1544, 1556.)

Defendant's demurrer based on the statute of limitations is OVERRULED. Plaintiff has alleged timely compliance with the Government Claims Act.

Defendant's demurrer to the first, third, fourth, fifth, and sixth causes of action are SUSTAINED WITH LEAVE TO AMEND, on the basis of failure to state facts sufficient to constitute a cause of action.

Defendant's demurrer to the second cause of action is SUSTAINED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA. Wrongful termination in violation of public policy is not a proper cause of action against a public entity.

Plaintiff is to file an amended complaint within ten (10) days of this court's order.

Motion to Strike Portions of Plaintiff's Complaint

Defendant's motion to strike is GRANTED IN PART and DENIED IN PART.

The motion to strike the phrase "punitive damages" from Paragraph 75 (Complaint ¶ 75, 10:18) is GRANTED WITHOUT LEAVE TO AMEND. Punitive damages are not available against a public entity.

The motion to strike the phrase "punitive damages" from Paragraph 82 (Complaint ¶ 82, 11:13) is GRANTED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA.

The motion to strike Plaintiff's prayer for relief at Number 6 (Complaint, No. 6, 14:9) is GRANTED WITHOUT LEAVE TO AMEND as to Defendant SLDMWA.

26CV-03018

Felisha Evenson Wood vs Sanad Mohamed Xavier

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing and temporary orders on Respondent was filed June 26, 2026.

26CV-03019

Felisha Wood vs Leticia Medina

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing and temporary orders on Respondent was filed June 26, 2026.

26CV-03301

Frances Robbins vs Mayra Aguilar

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing and temporary orders on Respondent was filed June 23, 2026.
